attorney, no persons or organizations other than the one named in the power of attorney shall be afforded information from the file; and when any claimant has filed notice with the Veterans Administration that he does not want his file inspected, such file will not be made available for inspection.

(72 Stat. 1114; 38 U.S.C. 210)

These regulations are effective October 8, 1959.

[SEAL] ROBERT J. LAMPHERE,
Associate Deputy Administrator.

[F.R. Doc. 59-8481; Filed, Oct. 7, 1959; 8:52 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2002]

[81767]

UTAH

Revoking in Whole or in Part Certain Executive and Departmental Orders Affecting the Uintah and Ouray Indian Reservation

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), the act of March 3, 1905 (33 Stat. 1048, 1070), and pursuant to Executive Order No. 10355 of May 26, 1952, and as Secretary of the Interior, it is ordered as follows:

1. The departmental order of January 16, 1908, which withdrew the following-described lands for Indian cemetery purposes is hereby revoked:

UINTAH SPECIAL MERIDIAN

T. 1 N., R. 1 W.,
Sec. 26, E½SW¼, SW¼SW¼, and SW¼SE¼.

Totaling 160 acres.

2. The Executive order of May 11, 1915, which established Phosphate Reserve No. 24, Utah No. 3, is hereby revoked so far as it affects the following-described lands:

UINTAH SPECIAL MERIDIAN

T. 1 N., R. 6 W.,
Sec. 20, N½NE¼;
Sec. 21, N½N½.
T. 1 N., R. 7 W.,
Sec. 19, lot 1.
T. 1 N., R. 8 W.,
Sec. 20, E½SE¼;
Secs. 21 and 22;
Sec. 23, E½NE¼, SW¼NE¼, W½NW¼, S½;
Sec. 24, N½, SW¼, and W½SE¼;
Sec. 25, NW¼, and NW¼SW¼;
Sec. 26, N½, and N½S½;
Sec. 27, N½, N½S½, and SW¼SW¼;
Sec. 28;
Sec. 33, N½, SW¼, and NW¼SE¼.

Totaling 5,075.33 acres.

3. The Executive order of July 20, 1905, as amended by the Executive order of July 21, 1905, which withdrew lands for reservoir site purposes to protect Indian water supplies, is hereby revoked so far as it affects the following-described lands:

UINTAH SPECIAL MERIDIAN

T. 2 S., R. 5 W.,
Sec. 7, lots 1 to 4, inclusive, and E½SW¼;
Sec. 18, lot 1 and W½E½;
Sec. 19, W½NE¼, NE¼, NW¼, SW¼SE¼, and SE¼SW¼;
Sec. 20, N½SW¼.
T. 2 S., R. 6 W.,
Sec. 12, E½.

Totaling 1,155.37 acres.

4. The departmental order of July 11, 1905, which withdrew lands for school and other purposes is hereby revoked so far as it affects the following-described lands:

UINTAH SPECIAL MERIDIAN

T. 2 S., R 1 E.,
Sec. 11, lots 1, 4, 12, 13, SW¼NW¼, NW¼SE¼NW¼, S½NE¼SW¼, and W½NE¼NE¼SW¼.

Totaling 202.3 acres.

5. The departmental order of August 17, 1905, which withdrew lands for reservoir purposes is hereby revoked so far as it affects the following-described lands:

UINTAH SPECIAL MERIDIAN

T. 2 S., R. 1 E.,
Sec. 21, NW¼NE¼NW¼.

Totaling 10 acres.

6. The Executive order of September 1, 1887, which set aside the following-described lands in the Uintah Reservation as a military reservation for the post of Fort Duchesne, Utah, is hereby revoked:

Beginning at a point 2 miles due north of the flagstaff of Fort Duchesne, Utah Territory, and running thence due west 1 mile, to the northwest corner; thence due south 3 miles, to the southwest corner; thence due east 2 miles, to the southeast corner; thence north 3 miles to the northeast corner; thence due west 1 mile, to the point of beginning.

Totaling 3,840 acres.

7. Executive Order No. 1579 of August 19, 1912, which placed under the jurisdiction of the Department of the Interior all lands comprised within the military reservation of Fort Duchesne, Utah, as reserved by Executive order dated September 1, 1887, supra, with the exception of the following-described lands which the said Executive Order No. 1579 retained in reservation for military purposes, is hereby revoked:

UINTAH SPECIAL MERIDIAN

T. 2 S., R 1 E.,
Sec. 23, SW¼SW¼, S½NW¼SW¼, SW¼NE¼SW¼, and W½SE¼SW¼;
Sec. 26, NW¼NW¼, and W½NE¼NW¼.

Totaling 150 acres.

8. The Executive order of May 17, 1921, placing under full jurisdiction and control of the Department of the Interior, the 150 acres specifically described in paragraph 7 of this order, is hereby revoked.

9. The lands described in this order total in the aggregate approximately 9,803 acres. They are a part of the Uintah and Ouray Indian Reservation.

ROGER ERNST,
Assistant Secretary of the Interior.

OCTOBER 1, 1959.

[F.R. Doc. 59-8438; Filed, Oct. 7, 1959; 8:46 a.m.]

[Public Land Order 2003]

[1813387]

MISSOURI

Abolishing Missouri Wildlife Management Area

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Missouri Wildlife Management Area established by Executive Order No. 8509, of August 8, 1940 on the following-described acquired lands, is hereby abolished:

FIFTH PRINCIPAL MERIDIAN

T. 46 N., R. 11 W.,
Sec. 17, NE¼, all that part of the NW¼ bounded by the following-described lines:
Beginning at the center one-quarter corner of sec. 17;
Thence westerly with the center line of said section to the one-quarter corner common to secs. 17 and 18;
Thence with the line common to said sections, Northerly 906 feet;
Thence in the NW¼, sec. 17,
Easterly 420 feet;
Northerly 414 feet;
Easterly 1,824 feet;
Northerly 550 feet;
Easterly 396 feet to a point in the center line of sec. 17;
Thence with the center line of said section, Southerly 1,870 feet to the place of beginning;
and SW¼, N½NE¼SE¼, N½NW¼SE¼, and all that part of the S½NW¼SE¼ and SW¼SE¼ lying west of Conner Creek;
Sec. 18, lot 1, all that part of the NE¼SE¼ bounded by the following-described lines:
Beginning at the one-quarter corner common to secs. 17 and 18;
Thence with the line common to said sections, Southerly 1,345 feet;
Thence S. 89°00' W., 350 feet;
Thence in the NE¼SE¼, sec. 18, N. 0°25' W., 1,344 feet; N. 89°35' E., 350 feet to the place of beginning;
and W½SE¼, and SE¼SE¼;
Sec. 19, lot 1, NE¼, E½SW¼, and SE¼;
Sec. 20, W½NE¼, except that part bounded by the following-described lines:
Beginning at the center east one-sixteenth corner of sec. 20;
Thence with the center line of said section, Westerly 483 feet;
Thence northeasterly to a point in the east one-sixteenth line, 724 feet northerly of the center east one-sixteenth corner;
Thence southerly 724 feet to the place of beginning;
and W½;
Sec. 29, all that part of the W½NE¼ lying south and west of the public road, NW¼, and all that part of the NW¼SW¼ lying west of Cedar Creek;
Sec. 30, lots 1 and 2 of the NW¼, lot 1, and the N½ and E½S½ of lot 2 of the SW¼, NE¼, N½SE¼, and SW¼SE¼.

The areas described aggregate approximately 2,250 acres.

Jurisdiction over the lands was transferred to the Department of Agriculture for use, administration and disposition in accordance with the provisions of Title III, and related provisions of Title IV of the Bankhead-Jones Farm Tenant Act, by an order of July 7, 1959 of the Acting Director of the Bureau of the Budget, the transfer to become effective when this order is signed.

ROGER ERNST,
Assistant Secretary of the Interior.

OCTOBER 1, 1959.

[F.R. Doc. 59-8439; Filed, Oct. 7, 1959; 8:46 a.m.]

[Public Land Order 2004]

[BLM 048272]

ARKANSAS

Reserving Lands for Use of Department of the Army (Beaver Dam and Reservoir Project)

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, and to the provisions of existing withdrawals, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral leasing laws but not disposals of materials under the Act of July 31, 1947 (61 Stat. 861; 30 U.S.C. 601-604) as amended, and reserved for use of the Department of the Army in connection with the construction, operation and maintenance of the Beaver Dam and Reservoir Project as authorized by the Act of September 3, 1954 (68 Stat. 1248):

FIFTH PRINCIPAL MERIDIAN

T. 20 N., R. 27 W.,
Sec. 10, S½NE¼NW¼;
Sec. 15, NE¼NW¼;
Sec. 20, SW¼NW¼.
T. 19 N., R. 28 W.,
Sec. 1, NE¼SE¼;
Sec. 18, E½SW¼.
T. 20 N., R. 28 W.,
Sec. 36, NE¼SE¼.

The areas described aggregate 260 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

OCTOBER 1, 1959.

[F.R. Doc. 59-8440; Filed, Oct. 7, 1959; 8:46 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 1—PRACTICE AND PROCEDURE

Alien Applicants for Radio Operator Licenses who are Aircraft Pilots; Supplemental Applications

At a session of the Federal Communications Commission held at it offices in Washington, D.C., on the 30th day of September 1959;

The Commission having under consideration an amendment to section 303(1) of the Communications Act of 1934 (Pub. Law 85-817) authorizing the Commission to waive the requirement of U.S. citizenship in the case of certain applicants for radio operator licenses who are aircraft pilots; and

It appearing, that an additional application form[1] should be provided on which alien aircraft pilots may request a waiver of the citizenship requirement and submit additional information required in connection with such request; and

It further appearing, that § 1.70 of the Commission's rules should be amended to specify the application form (FCC Form 755) to be used in requesting a waiver of the aforementioned citizenship requirement; and

It further appearing, that the amendment hereinafter ordered and the adoption of FCC Form 755 "Supplemental Application for Commercial Radio Operator License" do not involve any substantive change requiring compliance with the public notice and procedure provided by section 4 of the Administrative Procedure Act:

It is ordered, Pursuant to authority contained in sections 4(i), 303(*l*) and 303(r) of the Communications Act of 1934, as amended, that:

1. Application FCC Form 755, "Supplemental Application for Commercial Radio Operator License" is adopted.

2. Effective September 30, 1959, Part 1 of the Commission's rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U.S.C. 303)

Released: October 5, 1959.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. Section 1.70(a) of the Commission's rules is amended to read as follows:

§ 1.70 Application for radio operator license.

(a) Application for a new, renewed, replacement, or duplicate commercial radio operator license, for a verification card, or for a verification of operator license (for additional posting) FCC Form 759, shall be filed on FCC Form 756 entitled "Application for Radio Operator License"; Except that, if a restricted radiotelephone operator permit is being applied for, FCC Form 756 shall not be used but application shall in all cases be filed on FCC Form 753-1 entitled "Application for Restricted Radiotelephone Operator Permit by Declaration." In addition to these application forms, where waiver of citizenship requirements is desired pursuant to section 303(1) of the Communications Act, request therefor shall be filed on FCC Form 755 entitled "Supplemental Application for Commercial Radio Operator License".

* * * * * *

[1] Form filed as part of original document.

[F.R. Doc. 59-8462; Filed, Oct. 7, 1959; 8:49 a.m.]

PART 13—COMMERCIAL RADIO OPERATORS

Issuance of Provisional Radio Operator Certificates

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 30th day of September 1959;

The Commission having under consideration the time required in some circumstances for an applicant for a Commercial Radio Operator License to submit proof of eligibility or of qualifications and for the Commission to make a determination as to these matters; and

It appearing, that provision should be made in the Commission's Commercial Radio Operator rules (Part 13) for issuance of a Provisional Radio Operator Certificate pending determination as to the aforementioned matters; and

It further appearing, that the amendment hereinafter ordered relates to Commission procedure and does not involve any substantive change requiring compliance with the public notice and procedure provided by section 4 of the Administrative Procedure Act.

It is ordered, Pursuant to authority contained in sections 4(i), 303(l), and 303(r) of the Communications Act of 1934 as amended, that effective September 30, 1959, Part 13 of the Commission's rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U.S.C. 303)

Released: October 5, 1959.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Part 13 of the Commission's rules is amended by adding a new § 13.8 as follows:

§ 13.8 Provisional Radio Operator Certificate.

In circumstances requiring immediate authority to operate a radio station pending submission of proof of eligibility or of qualifications or pending a determination by the Commission as to these matters, an applicant for a radio operator license may request a Provisional Radio Operator Certificate. Any such request may be in letter form and shall be in addition to the formal application. If the Commission finds that the public interest will be served it may issue such certificate for a period not to exceed six months with such additional limitation as may be indicated. In no case will the Commission issue a Provisional Radio Operator Certificate if the applicant has not fulfilled examination or service requirements, if any, for the license applied for.

[F.R. Doc. 59-8463; Filed, Oct. 7, 1959; 8:49 a.m.]